
**OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY**

**Public and Constitutional Law
LW 1800 (Section C)
December Exam (Fall 2022)
Professor Kate Berger**

DATE: **Thursday, December 1, 2022**

TIME: **10:30 am – 12:00 pm (90 minutes)**

1. This exam consists of 7 pages, including one page of instructions and one page regarding academic honesty. Please ensure that you have received a complete document.
2. This is an open book exam. During this exam you are not permitted to communicate with anyone about the exam or matters related to this course. (This does not prevent you from communicating with Student Services if necessary.)
3. You will access the exam through the Osgoode Online DropBox (accessed through MyOsgoode (sign into MyOsgoode, click on “Exams and Assignments”, and access the DropBox for our course)). At the conclusion of the exam, please return to the Osgoode Online DropBox to upload your answers.
4. Please submit your answers in PDF format.
5. When you upload your answers, **DO NOT USE YOUR NAME**; use your **MIDTERM EXAM NUMBER ONLY**. To ensure anonymity, do not identify yourself in any way in your answers.
6. This exam is worth 25% of your final grade. It consists of two questions, both pertaining to a hypothetical fact pattern. The hypothetical fact pattern set out below is the same as the fact pattern that was distributed on November 24, 2022. You must answer question 1. It is worth 15 marks. You must also answer EITHER question 2(i) or question 2(ii). It is worth 10 marks. If you answer both, only your answer to 2(i) will be read and the answer to 2(ii) will be disregarded.
7. Your answers will be assessed on (a) quality of communication and (b) quality of the analysis.
8. Thank you for such a fascinating and special semester. I am looking forward to reading your answers and seeing all that you have learned!

ACADEMIC HONESTY AND REMOTE EXAMINATIONS/EXAMZES

Students are reminded of the following regarding academic honesty and remote exams, including this exam.

This exam is held remotely from any location that is convenient and accessible to the student. Students remain responsible for complying with their academic and ethical obligations under York University's and Osgoode Hall Law School's academic rules and policies. Students, at all times, must adhere to York University's [Senate Policy on Academic Honesty](#) and:

- **Must not discuss the exam with anyone or communicate (in any way including online, verbally, in person, or by expression, etc.) with anyone during the time they are taking the exam**, except to contact Student Services staff for technical assistance.
- **Students must only use/access the authorized materials as determined by their instructor.**
- **Must dispose of or otherwise delete or destroy the exam question package at the conclusion of the exam.**
- **Must provide attribution for any content or material that is not their own.** To safeguard against academic dishonesty, exam may be submitted by an instructor or the Administration to software services (e.g. Turnitin) that assist in verifying the originality of work and other academic honesty issues. Students are deemed to have consented to such submission as a condition of writing their exam.

As has been the case in previous terms based on remote examinations/assignments, any suspected failure to comply with the above requirements and/or with any aspect of the Senate Policy on Academic Honesty, including any form of suspected cheating under the Policy, will be thoroughly investigated and addressed under the Policy. Student Services staff and instructors will review the exams and the process closely for any evidence of cheating, plagiarism, collaboration, etc.

Students should be aware that, when a person applies to the Law Society of Ontario Lawyer Licensing Process, the person must answer the following question as part of the Good Character Requirement: "While attending a post-secondary institution, have allegations of misconduct ever been made against you, or have you ever been suspended, expelled or penalized by a post-secondary institution for misconduct".

HYPOTHETICAL FACT PATTERN

Following several major events in 2022, including blockades in Ottawa and Windsor by members of the “Freedom Convoy” in early 2022 and protests and job action by education workers in Fall 2022, members of the provincial Cabinet in Ontario began to worry about the civic culture in the province. Beginning in October 2022, Cabinet members began to discuss how they felt as though the balance of power in the province was shifting away from government and towards citizen groups, including unions, other groups of workers, and informally-organized but ideologically-aligned groups. The members’ discussions were casual and not part of the formal agendas of Cabinet meetings but concerns related to the power of groups, and their power to overtake public spaces and affect political action, began to dominate all non-agenda conversations between Cabinet members.

In late October 2022, Cabinet members were briefed by the Chief of the Ontario Provincial Police on matters of provincial security. In the briefing, Cabinet learned that an underground group was organizing a “Freedom Festival” to be held in Toronto in January 2023. While information about the Festival remained fuzzy and unconfirmed, the Police Chief was confident that the Festival would include, by design, significant trade in illegal drugs and weapons, and that organizers intended to immobilize parts of the city, rendering them inaccessible to foot and vehicular traffic of any kind. Encampments would be established such that workers, business owners, customers, and emergency personnel would be effectively prevented from accessing and using these areas of the city, including Queen’s Park and several major hospitals and universities.

On November 1, 2022, Cabinet was briefed by the Assistant Deputy Minister of Labour and Education on the possibility of a general strike by unionized workers in the province sometime in summer 2023. Early information on this strike suggested that it would include 24 hour/day protests in front of major federal, provincial, and private institutions across the province.

At a meeting on November 3, 2022, Cabinet members discussed their general fears about the power shift in the province and their perceived powerlessness when faced with the possible Freedom Festival and a general strike. They discussed a range of options that could address these fears, including seeking advice from senior analysts within each of the provincial ministries on how to proceed. Immediately after the meeting, emails were sent to those analysts, asking for studies and reports on the state of citizen action in the province and possible legislative and executive responses. The deadline for these reports was December 15, 2022.

On November 5, 2022, the government introduced Bill 44: *The Anti-Loitering and Freedom of Movement Act* in the legislature. Following an expedited process, the Bill was passed on November 9, 2022 and came into effect immediately upon receiving Royal Assent on November 10, 2022. The debate following first reading of the Bill was dominated by discussion of security and economic concerns for major cities and businesses in the province that could flow from large festivals and protests. The debate after second reading of the Bill was dominated by discussion of how to protect against violence and property damage by individuals attending large gatherings, as well as how to address concerns about the international reputation of the province in light of the

weapons and drug trafficking and drug use expected to take place at the Freedom Festival. The transcript of the legislative debates also captured some jokes and offhand comments by MPPs expressing fears of being unable to reach their vacation homes and ski resorts because of traffic disruptions associated with the Freedom Festival and strikes. Once passed, the Minister of Provincial Security held a press conference celebrating the *Act* as a means of protecting the safety, security, businesses, and recreation activities of the people of Ontario against disruption from large gatherings.

The operative parts of the *Anti-Loitering and Freedom of Movement Act* provided as follows:

Preamble

Whereas citizen groups have demonstrated tremendous power to disrupt normal business operations, prevent access to private and public property, and to gather in ways that undermine public safety, security, stability, political harmony, and order;

Whereas the Government wants to ensure that there are no further interruptions to business, private citizens' daily lives, or to the Government's ability to govern effectively;

Whereas the Government does not condone the use of public property for purposes aimed at disrupting the normal flow of traffic, economic activities, or peaceful enjoyment;

Whereas the Government does not condone the use of illegal drugs or violence;

And whereas the Government is committed to protecting public health, safety, and political stability;

This Act prohibits certain kinds of gatherings in the province without a permit; imposes a fine or imprisonment for encouraging, organizing, or participating in a prohibited gathering; and establishes the Provincial Gathering Permit Commission, which is responsible for issuing permits for the newly regulated kinds of gatherings.

In order to secure the purposes of this Act against legal challenges, which may create destabilizing uncertainty for the Government and the citizens of Ontario, this Act provides that it shall operate notwithstanding sections 2 and 7 through 15 of the Canadian Charter of Rights and Freedoms and despite the Human Rights Code.

Therefore, His Majesty, by and with the advice and consent of the Legislative Assembly of the Province of Ontario, enacts as follows:

1. In this *Act*, “gathering” refers to a group of more than 10 people congregating in public space for any purpose other than purely personal or recreational purposes, and includes a protest, picket line, encampment, or festival.
2. All gatherings in the province are prohibited unless a permit has been granted by the Provincial Gathering Permit Commission for the gathering.
3. It is an offence to encourage, organize, initiate, attend, remain at, or participate in a prohibited gathering.
4. Each day on which the prohibited gathering continues is a new offence.
5. A person who commits an offence under section 3 is liable,
 - (a) in the case of an individual, to a fine of not more than \$4,000 and imprisonment of up to 1 year; or
 - (b) in any other case, to a fine of not more than \$500,000.
6. Pursuant to subsection 33 (1) of the *Canadian Charter of Rights and Freedoms*, this Act is declared to operate notwithstanding sections 2 and 7 through 15 of the *Canadian Charter of Rights and Freedoms*.
7. The Provincial Gathering Permit Commission is hereby established and has the exclusive authority over all matters related to issuing permits for gatherings in the province of Ontario.
8. Decisions of the Provincial Gathering Permit Commission can be appealed to the Permit Appeal Board, which will hold hearings in relation to appeals on permit decisions by the Commission.

Also in November, at a remarkably (and not realistically) swift pace, a new federal government was elected, with a new Prime Minister in power. This Prime Minister ran on a platform of being strong on crime, pro-people, pro-family, and opposed to government overreach. By November 10, Parliament enacted the *Protection of Government Act*, section 2 of which provides that under no circumstances can individuals gather in any way that blocks access to federally-regulated businesses or federal government buildings. The *Protection of Government Act* also invoked section 33(1) in a provision replicating that of section 6 of the *Anti-Loitering and Freedom of Movement Act*.

On November 23, 2022, after five days of simultaneous protests in front of every major bank in Ontario, Sammy Zuma, the protest organizer, was charged with five offences under section 3 of the *Anti-Loitering and Freedom of Movement Act*. She immediately called her lawyer, Jo Kahn, to ask for advice on how to defend against these charges. Jo tells Sammy that they’ll think about it and get back to her as soon as possible.

When Jo gets home from work that evening, they find a note on the kitchen counter that says, “Hi! Can you please proofread my PubCon paper for me?! I have to submit it tomorrow! Thanks! Love you”. The note is attached to a paper titled “The State of Public & Constitutional Law: How to respond to government fear and mismanagement”. As Jo skims through the paper, they see the following snippets:

“Section 96 of the *Constitution Act, 1867* requires that legislatures take care when enacting legislation that establishes a new decision-maker or alters the authority of the superior courts. The superior courts are a central actor within the architecture of the constitution and their role and jurisdiction cannot be altered without a constitutional amendment”.

“The unwritten principles of the constitution can step in to assist individuals or organizations charged under either the *Anti-Loitering and Freedom of Movement Act* or the *Protection of Government Act*. While these principles cannot be relied upon as the basis for striking down legislation, they could otherwise serve as a constitutional defence against a charge under one of these statutes”.

“The Provincial Gathering Permit Commission and the Permit Appeal Board are administrative actors and thereby subject to administrative law. While the procedure they must follow is heavily regulated by law, the courts will not interfere with the merits of the decisions of either the Commission or the Board to grant or deny a permit. Such interference would be contrary to the principle of the rule of law”.

“The doctrine of interjurisdictional immunity can be of no use to someone charged under a provincial or federal statute who is seeking to defend that charge”.

Jo finds a pen and sits down to read the paper in full.

[Questions on the next page]

QUESTIONS

1. Jo is confident that the *Anti-Loitering and Freedom of Movement Act* falls under either Parliament's criminal law power (*Constitution Act, 1867*, s 91(27)) or the province's power to legislate on property and civil rights (*Constitution Act, 1867*, s 92(13)) and local matters in the province (*Constitution Act, 1867*, s 92(16)). However, Jo is not sure of the Act's pith and substance. Knowing of your expertise in public and constitutional law, Jo seeks your advice on two questions:

- (a) What would a court likely conclude is the pith and substance of the *Anti-Loitering and Freedom of Movement Act*?
- (b) What are the possible consequences of a validity argument for Sammy's case?

They ask you to fully explain and support your answer **(15 marks, 54 minutes)**.

2. **(10 marks, 36 minutes)** Please respond to ONE (1) of the following two options:

- i. Identify three errors in the paper that Jo is reading. Be sure to explain each error you identify, and provide and explain alternative language for the paper that would be accurate.

OR

- ii. Could Sammy successfully argue that section 3 of the *Anti-Loitering and Freedom of Movement Act* is inoperable?